

PETITION: 1. TO COMPEL TRUSTEE TO ACCOUNT AND PROVIDE INFORMATION; 2. TO INVALIDATE WRONGFUL LOAN DOCUMENTS; 3. TO DETERMINE OWNERSHIP OF TRUST PROPERTY; 4. FOR FINANCIAL ELDER ABUSE; 5. FOR BREACH OF TRUST / FIDUCIARY DUTY; 6. FOR DAMAGES AND SURCHARGE OF TRUSTEE; 7. TO DEEM KIM TYLER PREDECEASED; 8. ALTERNATIVELY, TO APPLY KIM TYLER'S INTEREST AS A BENEFICIARY OF THE TRUST TO THE SATISFACTION OF MONEY JUDGMENT; 9. FOR REMOVAL OF TRUSTEE AND APPOINTMENT OF A SUCCESSOR TRUSTEE; 10. FOR IMMEDIATE SUSPENSION OF TRUSTEE AS AND FOR APPOINTMENT OF AN INTERIM TRUSTEE; 11. TO RESTRAIN TRUSTEE FROM USING TRUST ASSETS TO DEFEND; 12. FOR PRELIMINARY INJUNCTION PREVENTING THE TRUSTEE FROM USING TRUST ASSETS

TENTATIVE RULING: The matter is CONTINUED to August 26, 2026, at 8:30 a.m. in Dept. A to permit Petitioner to serve Notice of Hearing and the Petition on: Debra Winkler, Julie Ingrid Spencer and Tim McCullach.

“The court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question.” (*Diaz v. Prof. Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204-05.) Debra Winkler is identified in the Trust as the child of decedent Valija A. Tyler, Julie Ingrid Spencer is identified in the Trust as the child of decedent Allen N. Tyler and Tim McCullach is named co-trustee. However, there is no proof of service of the Petition and Notice of Hearing on Debra Winkler, Julie Ingrid Spencer and Tim McCullach in the Court’s file. (See Prob. Code § 1821, subd. (b), 1822, subd. (b)(2).).

Petitioner and any “interested person” who wishes to “request time for filing a response to the petition, for discovery proceedings, or for other preparation for the hearing” should prepare to appear at the August 26, 2026, to discuss whether any opposition is anticipated, whether the parties intend to submit on verified pleadings and affidavits (see *Evangelho v. Presoto* (1998) 67 Cal.App.4th 615, 620), whether any discovery or other pre-hearing practice is anticipated, and whether the parties are willing to participate in alternative dispute resolution proceedings. (Prob. Code, § 852 [mandating that the court “shall grant a continuance for a reasonable time” where any interested person appears at the hearing to request an extension of time].) Should any party desire an evidentiary hearing, the parties should be prepared, at the August 26, 2026, hearing, to provide the Court with an estimate for the length of the evidentiary hearing, and to set the hearing on the Court’s calendar.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Kevin Coluccio et al v. Thomas Trainor et al

25CV001138

CROSS-DEFENDANT CALMAT CO. dba SHAMROCK MATERIAL'S DEMURRER TO CROSS-COMPLAINT, THREE SOLES INC. dba TRAINOR BUILDERS' CROSS-COMPLAINT

TENTATIVE RULING: The Demurrer is OVERRULED. Cross-Defendant Calmat Co. dba Shamrock Materials ("Shamrock") is granted 10 days' leave from entry of order to answer the First Amended Cross-Complaint ("FACC"). (See Rules of Court, rule 3.1320(g).)

A. PROCEDURAL MATTERS

Shamrock demurs, pursuant to Code of Civil Procedure section 430.10, subdivisions (e) and (f),¹ to Cross-Complainant Three Soles Inc. dba Trainor Builders' ("Trainor") FACC, filed April 2, 2026, on the grounds that the First Cause of Action for Equitable Indemnity, Second Cause of Action for Partial Indemnity, Third Cause of Action for Contribution, Fourth Cause of Action for Apportionment of Fault, and Fifth Cause of Action for Declaratory Relief fail to state facts sufficient to constitute a cause of action.

B. LEGAL STANDARD

A complaint must contain "facts constituting the cause of action." (§ 425.10, subd. (a)(1).) The party against whom a complaint has been filed may object, by demurrer, on the grounds that "[t]he pleading does not state facts sufficient to constitute a cause of action," or "[t]he pleading is uncertain." (§ 430.10, subds. (e)-(f).)

A demurrer is treated as "admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The Court must "construe the allegations of a complaint liberally in favor of the pleader." (*Skopp v. Weaver* (1976) 16 Cal.3d 432, 438.) The Court must also accept as true facts that may be inferred from those expressly alleged. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) The Court may also consider as grounds for a demurrer any matter that is judicially noticeable under Evidence Code sections 451 or 452. (Code. Civ. Proc., § 430.30, subd. (a).) Because "[a] demurrer tests only the legal sufficiency of the pleading . . . the question of plaintiff's ability to prove the [] allegations, or the possible difficulty in making such proof does not concern the reviewing court." (*Comm. on Children's Television, Inc. v. Gen. Foods Corp.* (1983) 35 Cal.3d 197, 213-14.)

C. DISCUSSION

Shamrock argues that Trainor's claims in the FACC against it fail because each requires Shamrock to be a concurrent tortfeasor, but the economic loss rule bars any claims against

¹ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.